Notification Waiver Determination

Crescent Capital Partners – Hall Contracting

Acquisition	Hamilton Bidco Pty Ltd, an entity majority-owned by funds managed by Crescent Capital Partners Management Pty Limited (**Crescent)** applied for a notification waiver in respect of its proposed acquisition of 100% of the share capital in Hall Holdco Pty Ltd (together with its subsidiaries, **Hall Contracting**), as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	16 October 2026

Parties to the Acquisition	The acquirer, Crescent, is an alternative asset manager covering Australian and New Zealand private equity, private credit and active listed equities. The target, Hall Contracting, supplies marine infrastructure construction services, dredging services and water/tailings management services. Hall Contracting is currently majority owned and controlled by another Crescent-managed fund.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular, there is no horizontal consolidation, removal of a competitor, or change to Hall Contracting's competitive position as a result of the Acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC also considered the potential application of section 51ABD of the Act. The applicant submits that it is arguable section 51ABD applies, however, there is uncertainty as to its application

	given the nature of the relationship between the parties. Having regard to the particular circumstances, including the consequences of non-notification in reliance on section 51ABD if it was found not to apply, the ACCC considers it appropriate to make a determination on the basis that the acquisition provisions in the Act apply to the Acquisition. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act